



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

January 30, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21221
(SECOND REVISION)

EXPIRATION DATE: 2023-06-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Starfire Corporation
Saint Benedict, PA
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of explosives (firework components) that have not been examined and classified in accordance with 49 CFR 173.56(b). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.56(b) in that the explosive materials have not been examined and classified.
5. BASIS: This special permit is based on the application of Starfire Corporation dated December 22, 2022, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Substances, explosive, n.o.s. (fireworks components*)	1.1G	UN0476	N/A

*Note: Only fireworks compositions detailed in the application dated April 9, 2021, on file with the Office of Hazardous Materials Safety (OHMS) are authorized under the terms of this permit.

7. SAFETY CONTROL MEASURES:a. PACKAGING:

- (1) Inner packaging: Non-static plastic bags, each containing not more than twenty-five (25) pounds net explosive weight.
- (2) Outer packaging: UN 4G fiberboard box, each containing not more than two (2) inner packagings, meeting the Packing Group II performance criteria.

b. TESTING:

- (1) By March 15, 2023, the grantee must submit a complete EX approval application(s) conforming to § 173.56 for the fireworks compositions detailed in the application dated April 9, 2021, on file with the OHMS.
- (2) Failure to submit by March 15, 2023, a complete EX approval application(s) conforming to § 173.56 for the fireworks compositions detailed in the application dated April 9, 2021, on file with the OHMS may result in termination of this special permit.

c. OPERATIONAL CONTROLS: Transportation of packages under the terms of this special permit must be conducted via private carriage.8. SPECIAL PROVISIONS:

- a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- b. This special permit may not be used after June 30, 2023. Continued use of this special permit will not be authorized under § 107.109(b).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "W. Schoonover", is written over a light blue circular stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Andrew Eckenrode/NICKS